

ELIZABETH II



1988 CHAPTER xiii

An Act to authorise the removal of restrictions attaching to part of the former burial ground and church of Saint Bennet Fink (otherwise known as Saint Benet Fink) in the city of London; to authorise the use thereof for other purposes; and for purposes connected therewith.
[3rd May 1988]

WHEREAS Eagle Star Insurance Company Limited (hereinafter referred to as "the Company") is a company limited by shares incorporated in England under the Companies Acts 1862 to 1900 carrying on all classes of insurance business (other than industrial life assurance) in the United Kingdom and overseas:

And whereas the Company owns and occupies office premises known as 1 to 4 Threadneedle Street in the city of London which premises adjoin the open space which forms part of the site of the former church of Saint Bennet Fink and its burial ground (which site and burial ground are hereinafter together referred to as "the burial ground"):

And whereas by an Act passed in the fifth and sixth years of the reign of Her late Majesty Queen Victoria intituled "An Act for further extending the Approaches to London Bridge and the Avenues adjoining to the Royal Exchange in the City of London, and for amending the Acts relating thereto respectively; and for raising a Sum of Money towards opening a Street to Clerkenwell Green in the County of Middlesex in continuation of the new Street from Farringdon Street in the City of London" (hereinafter called "the Act of 1842") the demolition of the said church was authorised and the burial ground was vested in the Corporation of London:

1842 c. ci.

And whereas by section 17 of the Act of 1842 it is provided as regards so much of the burial ground as was not appropriated for the purposes of the Act of 1842 that it shall remain for ever unbuilt upon, and unappropriated to any purpose except such ornamental purpose as the Corporation of London with the consent of the Bishop of London for the time being shall think fit to direct:

1852 c. lxxi.
1847 c. cclxxx.

And whereas by the London (City) Improvement Act 1852 (incorporating certain of the provisions of the London (City) Improvement Act 1847) powers for making other improvements to streets in the city of London were granted and by virtue of section 46 of the said Act of 1847 the grant of building leases for certain cleared sites not required for but near to the streets was authorised once they had been so improved, including the site of some part of the burial ground on which a portion of the original premises of 1 Threadneedle Street were then accordingly built:

And whereas by virtue of section 47 of the said Act of 1847 the disposal of the fee simple reversion free from incumbrances of the sites so leased was authorised and a building lease of the site of the said original premises of 1 Threadneedle Street, as well as a subsequent conveyance thereof, were executed pursuant to the powers of the said sections 46 and 47 respectively:

And whereas notwithstanding the said building lease and the said conveyance as respectively so granted, certain doubts have been raised by reason of the restrictions of section 17 of the Act of 1842 as to the building on the relevant portion of those premises, which doubts should be dispelled:

1971 c.78.

And whereas it is expedient that, in accordance with the terms of planning permission granted under Part III of the Town and Country Planning Act 1971, the Company's premises at 1 to 4 Threadneedle Street should be redeveloped:

And whereas it is expedient that part of the land unbuilt upon and governed by the said section 17 should be freed from all restrictions and incorporated into the redevelopment, whilst parts of the existing site of 1 Threadneedle Street should be removed from the development and restored to form part of the land unbuilt upon and subject to section 17:

And whereas the purposes of this Act cannot be effected without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted, and be it enacted, by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Short title.

1. This Act may be cited as the Saint Bennet Fink Burial Ground (City of London) Act 1988.

Interpretation.

2. In this Act—

“the Act of 1842” means the Act of that year, referred to in the Preamble to this Act;

“the brown lands” means the lands (on which at the passing of this Act no buildings stand) coloured brown on the plan;

“the burial ground” means the burial ground referred to in the Preamble to this Act, and includes any of the brown lands, the green lands or the pink lands which at any time formed part of the site of the former church of Saint Bennet Fink or of its burial ground;

“the Company” means Eagle Star Insurance Company Limited or any other person using, developing or dealing with the brown lands, the green lands or the pink lands;

“the green lands” and “the pink lands” means the lands (on which at the passing of this Act parts of the structures of the premises 1 to 4 Threadneedle Street in the city of London stand) coloured respectively green and pink on the plan;

“open space” has the meaning given by section 290 of the Town and Country Planning Act 1971;

“the plan” means the plan which was in the month of November 1987 deposited in the office of the Clerk of the Parliaments House of Lords, in the Private Bill Office of the House of Commons and copies of which were in the same month deposited with the Remembrancer of the Corporation of London and the Company;

“the restrictions” means the restrictions applying to the burial ground under section 17 of the Act of 1842 and all other trusts, uses, obligations, disabilities and restrictions (including the effects of consecration) which immediately before the passing of this Act attached to some or all of the brown lands, the green lands and the pink lands by reason of their forming part of the burial ground or of an open space or of any part thereof being a disused burial ground within the meaning of the Disused Burial Grounds Act 1884;

1884 c. 72.

and in section 4 (Removal of human remains) of this Act “the burial ground lands” means any of the brown lands, the green lands or the pink lands.

3.—(1) The existence of the premises 1 to 4 Threadneedle Street or any premises situate on the site of those premises shall not be taken to constitute a breach of any of the restrictions.

Discharge of certain trusts and restrictions affecting burial ground.

(2) On the passing of this Act the pink lands shall for all time and for all purposes be freed from such of the restrictions (if any) as may attach thereto immediately before that passing.

(3) Without prejudice to subsection (1) above, the following provisions shall have effect with respect to the green lands on the passing of this Act, whether or not any of the restrictions attach to those lands immediately before that passing:—

- (a) it shall be lawful to dispose of the green lands;
- (b) it shall be lawful to incorporate the green lands in any redevelopment of the above-mentioned premises or to make use of those lands in connection with any such redevelopment; and
- (c) if redevelopment of the premises takes place and does not include the erection of any building or structure on the green lands, then upon completion of that redevelopment the green lands shall be subject to the restrictions.

(4) No disposition of the brown lands after the passing of this Act shall be taken to constitute a breach of the provisions of section 17 of the Act of 1842 and, if any redevelopment of the premises 1 to 4 Threadneedle Street takes place and includes the erection of any building or structure on the brown lands, then from the commencement of that redevelopment the brown lands shall be freed for all time and for all purposes from the restrictions.

4.—(1) Before the Company—

Removal of human remains.

- (a) uses or causes to be used for any purpose, other than as an open space, any part of the brown lands which on the passing of this Act was used as an open space; or
- (b) uses or causes to be used for any purpose other than for its present form of development, or as open space, any part of the green lands or the pink lands which on the passing of this Act was developed;

the Company shall remove, or cause to be removed therefrom, the remains of all deceased persons interred therein in accordance with the following provisions of this section.

c. xiii Saint Bennet Fink Burial Ground (City of London)
Act 1988

(2) Before any such remains are removed from the burial ground lands the Company shall give notice in accordance with subsection (3) below of the intended removal of the remains from the burial ground lands.

(3) Notice under subsection (2) above shall describe the burial ground lands and state the general effect of the following provisions of this section, and shall be given by:—

- (a) publishing it once in each of two successive weeks in a newspaper circulating in the city of London; and
- (b) displaying it in a conspicuous place upon or near to the burial ground lands.

(4) At any time within 8 weeks after the first publication of a notice under subsection (2) above, any person who is a personal representative or relative of any deceased person whose remains are interred in the burial ground lands may give notice in writing to the Company of his intention to undertake the removal of such remains, and thereupon if such remains can be identified, he shall be at liberty to cause such remains to be removed and reinterred in any burial ground or cemetery in which burials may legally take place or to be removed to and cremated in any crematorium, and forthwith after such reinterment or cremation shall provide to the Company a certificate for the purpose of enabling compliance with subsection (8) below.

(5) If any person giving such notice as aforesaid fails to satisfy the Company that he is such personal representative or relative as he claims to be or that the remains in question can be identified, the question shall be determined on the application of either party by the county court, and the court shall have power to make an order specifying who shall remove the remains and as to the payment of the costs of the application.

(6) The Company shall defray the reasonable expenses of the removal and reinterment or cremation of such remains.

(7) If—

- (a) within the said period of 8 weeks no notice under subsection (4) above has been given to the Company in respect of any remains in the burial ground lands; or
- (b) such notice is given and no application is made under subsection (5) above within 8 weeks after the giving of the notice but the person who gave the notice fails to remove the remains within a further period of 8 weeks thereafter; or
- (c) within 8 weeks after any order is made by the county court under subsection (5) above any person, other than the Company, specified in the order fails to remove the remains; or
- (d) it is determined that the remains to which any such notice relates cannot be identified;

the Company shall remove the remains and cause them either to be reinterred in such burial ground or cemetery in which burials may legally take place as the Company thinks suitable for the purpose, or cremated in such crematorium as the Company thinks suitable for the purpose:

Provided that if any personal representative or relative has given notice under subsection (4) above and has satisfied the Company that he is such personal representative or relative as he claims to be and that the remains in question can be identified but does not remove the remains, the Company shall comply with any reasonable request he may make in relation to the removal and reinterment or cremation of the remains.

(8) Upon the reinterment or cremation of any remains under this section, a certificate of reinterment or cremation shall be sent to the Registrar General by the Company giving the date of reinterment or cremation and identifying the place from which the remains were removed and the place in which they were reinterred or cremated.

(9) The removal of the remains of any deceased person under this section shall be carried out in accordance with any directions that may be given by the Secretary of State.

(10) Any jurisdiction or power conferred on the county court by this section may be exercised by the registrar of the court.

(11) Section 25 of the Burial Act 1857 shall not apply to a removal carried out in accordance with this section. 1857 c. 81.

5. All costs, charges and expenses of and incident to the preparing for, obtaining and passing of this Act, or otherwise in relation thereto, shall be paid by the Company and may in whole or in part be defrayed out of revenue. Costs of Act.



Saint Bennet Fink Burial Ground (City of London) Act 1988

CHAPTER xiii

ARRANGEMENT OF SECTIONS

Section

1. Short title.
2. Interpretation.
3. Discharge of certain trusts and restrictions affecting burial ground.
4. Removal of human remains.
5. Costs of Act.